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| <p><b>10.</b></p> | <p><b>DEL REPOSO ASSOCIATION<br/>VS. DEL REPOSO CONDOS,<br/>LLC<br/>2022-0130000</b></p> | <p><b>MOTION FOR CONTINUANCE OF TRIAL</b></p> <p>Defendant Clark Pacific’s motion to continue the current trial date of August 28, 2026, is GRANTED.</p> <p>California Rules of Court, rule 3.1332, governs motions for continuance of a trial. Rule 3.1332, subdivision (a) states, “To ensure the prompt disposition of civil cases, the dates assigned for a trial are firm. All parties and their counsel must regard the date set for trial as certain.” (Cal. Rules Ct., rule 3.1332, subd. (a).) “Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include: . . . [¶] (5) The addition of a new party if: [¶] (A) The new party has not had a reasonable opportunity to conduct discovery and prepare for trial; or [¶] (B) The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party’s involvement in the case; ...[¶] (7) A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial. (Cal. Rules Ct., rule 3.1332, subd. (c).)</p> <p>“In ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include: [¶] (1) The proximity of the trial date; [¶] (2) Whether there was any previous continuance, extension of time, or delay of trial due to any party; [¶] (3) The length of the continuance requested; [¶] (4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance; [¶] (5) The prejudice that parties or witnesses will suffer as a result of the continuance; [¶] (6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay; [¶] (7) The court’s calendar and the impact of granting a continuance on other pending trials; [¶] (8) Whether trial counsel is engaged in another trial; [¶] (9) Whether all parties have stipulated to a continuance; [¶] (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and [¶] (11) Any other fact or circumstance relevant to the fair determination of the motion or application.” (Cal. Rules Ct., rule 3.1332, subd. (d).)</p> <p>Trial is currently set for August 28, 2026. Defendant contends a trial continuance is necessary due to the significant, unanticipated change in the status of the case resulting from the Case Management Order not being entered more than 180 days after filing and the fact that there are several necessary parties that have not yet appeared in this matter. Specifically, defendants Del Reposo Condos, LLC; Calvin Nguyen and Alzate Building Corporation are still in the process of serving their respective cross-complaints and bringing required parties into this case. As a result, the parties that have not yet appeared</p> |
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|            |                                           | <p>have not had a reasonable opportunity to conduct discovery and prepare for trial, nor have the other parties had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new parties' involvement in the case. This is sufficient to show good cause.</p> <p>Defendant seeks to continue trial until April 5, 2027. Plaintiff has shown that it will be prejudiced by continuance until April 2027 since this action was filed in December 2022 and it was Defendants that failed to add and serve the additional indispensable parties until now. Further, Plaintiff contends that with each passing day, the defects at the property continue to worsen.</p> <p>Based on the foregoing, the Court will grant continuance until February 2027. Trial is CONTINUED to 2/12/27 at 9:00 a.m. in Dept. C32.</p> <p>Moving Defendant to give notice.</p>                                                                                              |
| <b>11.</b> | <b>KIM VS. TRAN<br/>2026-01566561</b>     | <p><b>MOTION TO CONSOLIDATE</b></p> <p>Plaintiff Harinne Kim's Motion is CONTINUED to 8/25/26 at 9:00 a.m., in Dept. C32.</p> <p>Plaintiff failed to comply with California Rules of Court, rule 3.350(a)(1)(A). Rule 3.350(a)(1)(A) is mandatory; thus Plaintiff is ORDERED to file a code compliant notice by August 14, 2026. The Court shortens the required notice period to seven (7) court days to accommodate the hearing date.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| <b>12.</b> | <b>WEBER VS. MORADO<br/>2025-01511904</b> | <p><b>DEMURRER TO AMENDED CROSS-COMPLAINT</b></p> <p>Defendants/cross-complainants Corinne Morado, Gencare Connects, Inc., and Daian Corporation's Demurrer to Plaintiffs Rosalie Lu Weber and Rudolf Weber's First Amended Complaint is OVERRULED in part and SUSTAINED in part with 20 days leave to amend.</p> <p><u>First Cause of Action for Breach of Contract</u></p> <p>"To state a cause of action for breach of contract, a party must plead the existence of a contract, his or her performance of the contract or excuse for nonperformance, the defendant's breach and resulting damage." (<i>Harris v. Rudin, Richman &amp; Appel</i> (1999) 74 Cal.App.4th 299, 307 [citation omitted].)</p> <p>Plaintiffs allege the parties entered into two stock sale agreements and Defendants breached those agreements, which resulted in damages to Plaintiffs. (FAC ¶¶ 97-103.) Plaintiffs also allege Defendants breached two separate oral agreements. (FAC ¶ 104.)</p> |